

25VECV03709 25VECV03709

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25VECV03709 Rivas Diaz v VW

[TENTATIVE] ORDER: Plaintiff Erika Yamilet Rivas Diaz's Motion for Attorneys' Fees is GRANTED at the reduced amount of \$11,251.50.

The Court sets an OSC re Monetary Sanctions of \$750.00 to be levied against Attorney Kevin Jacobson, individually, and \$750.00 to be levied against Attorney Alex McKeon, individually. Sanctions to be payable to the Court. The OSC is scheduled for _____, 2026. Opposition per Code.

Introduction

Plaintiff Erika Yamilet Rivas Diaz (Plaintiff) moved for attorneys' fees against Defendant Volkswagen Group of America, Inc. (Defendant). The total in attorneys' fees requested is \$22,650.50, which includes: (1) \$14,920.00 in attorneys' fees; (2) \$3,730.00 for a 1.25 multiplier; and (3) an additional \$4,000.00 for fees to review the opposition, draft the reply and appear at the hearing.

Procedure

In the motion, Plaintiff cited to "Avila v. Ford Motor Company 2024 WL 311081 (C.D. Cal. May 15, 2024)." (Motion, pgs. iv:2-3 and 9:18.) However, the Court could not locate the opinion either by searching the case name or the case citation. The citation appears to be a hallucination. Further, Plaintiff cited to "Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 807". (Emphasis added.) (Motion pgs. v:4-5 and 8:16-17.) The citation is incorrect and the correct citation is "31 Cal.App.4th 99". The incorrect citation is seen as a hallucination also.

In the opposition, Defendant also cited to "Nightingale, 4 Cal.App.5th at 462". (Emphasis added.) (Opposition pg. 14:16.) However, this citation also is incorrect. As stated above the correct citation is "31 Cal.App.4th 99". The Court finds that the incorrect citation to the Nightingale case to be a hallucination. Further, Defendant cited to "Donahue v. Donahue (2010) 184 Cal.App.4th 259, 271". (Emphasis added.) (Opposition pg.14:17-18.) The correct citation to the Donahue opinion is "182 Cal.App.4th 259". The Court finds the incorrect citation to the Donahue opinion to be a hallucination.

For the above hallucinations, the Court sets an OSC re: Sanctions of \$750.00 to be levied against Attorney Kevin Jacobson, individually, and \$750.00 to be levied against Attorney Alex McKeon, individually. (Noland v. Land of the Free LP (2025) 114 Cal.App.5th 426, 444-448.) The sanctions if levied are payable to the Court.

Discussion

Plaintiff asserted entitlement to attorneys' fees as the prevailing party under Civil Code, section 1794(d). There is no dispute that Plaintiff is the prevailing party.

Statutory attorney fees are ordinarily determined by the court pursuant to the "lodestar" or "touchstone" method. However, the Court's discretion is limited in fee awards under the SBA. The statute takes a different approach from customary statutory or contractual provisions. The statute requires an "initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." In the situation of a contingency fee arrangement, the court in *Nightingale* stated, "for purposes of section 1794, subdivision (d), a prevailing buyer represented by counsel is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorney." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817-818 (citing to *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104-105, fn. 6.) In making a lodestar calculation of proper hourly rates to apply, "the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009), the difficulty or complexity of the litigation to which that skill was applied (*Syers Properties [III], Inc. v. Rankin* (2014) 226 Cal.App.4th 691.] at p. 700) . . . and affidavits [from plaintiffs' attorneys and] from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Heritage*, at p. 1009.)" (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437.)

Plaintiff asserted that representation was retained on a contingency basis. (Kevin Jacobson (Jacobson) Decl. pars. 72 and 93.) Plaintiff asserted that fees would have been calculated at 32 hours for time charged by several attorneys: (1) Donald Mahnke (8.2 hours), (2) Stephen Basinger (7.7 hours), (3) Ningjing Jiang (7.1 hours), (4) Joshua Kohanoff (.6 hours), (5) Gary Sobel (1.9 hours), (6) Solange Tadros (1.2 hours), and (7) Derek Chipman (5.3 hours). (Jacobson Decl. pars. 48-61, Exh. 43.) The Court finds that the time expended by the seven attorneys to be excessive because the action was not heavily litigated with law and motion work specific to Defendant. The Court was only called upon to resolve a singular law & motion matter, which did not involve Defendant. A demurrer was filed by Co-Defendant DCH Calabasas-A LLC. Because the demurrer did not involve Defendant, the Court strikes the request for fees related to Co-Defendant DCH Calabasas-A LLC's demurrer (5.9 hours total or \$3,510.00). The action also involved three motions to compel further filed against Defendant but became moot due to the settlement. It is noted that Plaintiff prepared the discovery motions mid-October 2025, while Plaintiff was in possession of Defendant's Code of Civil Procedure section 998 Offer to Compromise (998 Offer). Defendant served their 998 Offer on September 18, 2025, and Plaintiff's invoice showed that the 998 Offer appears to have been first reviewed on October 3, 2025. (Jacobson Decl., Exh. 43 at pg. 6; Alex McKeon Decl. par. 5, Exh. A.) The Court finds it unreasonable that Plaintiff prepared the discovery motions while Defendant's 998 Offer was pending and/or possibly was not reviewed/communicated to Plaintiff when received in September 2025. The time expended on the discovery motions after receipt of the 998 Offer is stricken from the fees' calculation (7.1 hours total or \$2,485.00). Further, this action also was resolved within four months of filing and/or two months from Defendant's first appearance. The action was filed on July 3, 2025. The Answer was filed on August 13, 2025. The notice of settlement was filed on October 31, 2025. Because action was settled relatively quickly, the Court finds the total amount requested is unreasonable. The Court reduces the requested fees of \$11,410.00 by a total of \$2,485.00. The total fees are \$8,925.00.

Plaintiff further requested an adjusted, \$2,326.50 for reviewing the opposition, drafting the reply, and appearing at the hearing. The Court finds the adjusted amount in fees to be reasonable.

Plaintiff's total fees awardable is \$11,251.50.

Plaintiff lastly requested a 1.25 multiplier, which amounted to \$3,730.00. In determining to augment the fees by a multiplier the Court takes into consideration "various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on

the merits and of establishing eligibility for the award.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 819; Serrano v. Priest (Serrano III) (1977) 20 Cal.3d 25, 49.) Plaintiff has the burden of proof to show that the enhancement is primarily to compensate counsel at a rate reflecting the risk of nonpayment in contingency cases as a class. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 (Ketchum).) The aim is to compensate attorneys at fair market value as an inducement to accept these cases. (Id.) “A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party.” (Ketchum, supra, 24 Cal.4th at p. 1139.) The Court further has the discretion to adjust the lodestar downward where appropriate. (Ketchum, supra, 24 Cal.4th at p. 1132, Chavez v. Netflix, Inc. (2008) 162 Cal.App.4th 43, 64.) The representation of Plaintiff did not exceed the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rates charged. There was no presentation of any new or novel legal theory to promote Plaintiff’s position. Litigation with Defendant was not contentious. The Court file does not show much in the way of law and motion disputes with Defendant, other than the unreasonable discovery motions which became moot. Further, the fact that this action took about four months to prosecute, defend, and/or settle also shows the non-complex nature of the action. Lastly, the fact that seven attorneys could seamlessly work on the case and take on different sections of prosecuting the action further shows the non-complexity of the case. On these grounds, the Court declines to award a fee enhancement.

The requested multiplier of 1.25 (\$3,730.00) is DENIED.

Plaintiff’s Motion for Attorneys’ Fees is GRANTED at the reduced amount of \$11,251.50.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.